BY ORDER OF THE COMMANDER
JOINT BASE ELMENDORF-RICHARDSON

JOINT BASE ELMENDORF-RICHARDSON INSTRUCTION 31-118

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION PROGRAM

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This instruction implements Air Force Policy Directive (AFPD) 31-1, *Integrated Defense.* It is used in conjunction with Joint Publication Army Regulation (AR) 190-5/Department of the Air Force Instruction (DAFI) 31-218, *Motor Vehicle Traffic Supervision*, DAFI 91-207, The *Traffic Safety Program*, DODI 6055.04, *Motor Vehicle and Traffic Safety* and is based upon the Alaska traffic code. This instruction applies to all individuals assigned to, residing on, recreating on, or visiting Joint Base Elmendorf-Richardson (JBER) installation or property to include all civilians regardless of military affiliation and all military members and branches of the National Guard and Reserves. This instruction establishes policies and procedures governing motor vehicle traffic supervision and registration requirements on JBER. Compliance with this instruction cannot be waived. This publication may not be supplemented. Failure to obey **paragraph 4.3.1.1.1** constitutes a violation of Article 92(1), Uniform Code of Military Justice (UCMJ), *Failure to Obey Order or Regulation*. Article 92(1) of the UCMJ does not apply to members of the Alaska National Guard (AKNG) while in Title 32 status (that is, activated for state duty under state command), but AKNG members may be subject to an equivalent article under a state military justice code. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR), using the Department of the Air Force (DAF) Form 847, *Recommendation for Change of Publication*. Route the DAF Form 847 through the appropriate chain of command. Ensure that all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and are disposed of in accordance with (IAW) the Air Force Records Disposition Schedule which is

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SUMMARY OF CHANGES

This document is substantially revised and must be completely reviewed. This instruction has been updated to correlate new policies and procedures and updated terminology.

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Chapter 1

INTRODUCTION

1.1. Compliance.

1.1.1. This instruction complies with the National Highway Safety Program Standards promulgated under the National Highway Safety Act of 1966.

1.1.2. This instruction assimilates, to the maximum extent possible, the Alaska Statute (AS) Title 28, *Motor Vehicles,* and the Municipality of Anchorage, Title 9, *Vehicles and Traffic.*

1.1.3. By order of the 673 ABW Commander, this instruction will be strictly adhered to on JBER IAW the Internal Security Act of 1950.

1.2. Program Management. To provide the safe and efficient movement of traffic on JBER, all statutes under Title 13 Alaska Administrative Code (AAC), *Public Safety*, AS 28, and Anchorage, Alaska Code of Ordinances Title 9, *Vehicles and Traffic*, are applicable, except as noted in this instruction.

1.3. Responsibilities. The Defense Force Commander (DFC) is responsible for the enforcement of all traffic laws and regulations, including applicable state and city laws, on JBER.

1.4. Delegation of Authority. The 673d Air Base Wing Commander (ABW/CC) has delegated magistrate authority under this instruction to the 673d Mission Support Group (MSG/CC). The 673d Air Base Wing Staff Judge Advocate (ABW/SJA) maintains the letter of delegation.

1.5. Security Forces. For the purpose of this instruction the term Security Forces (SF) will capture all members assigned to the 673d Security Forces Squadron (SFS) enforcing all traffic laws and regulations to include Security Forces Members, Military Police, and Department of the Air Force Civilian Police.

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges. Driving a Government Owned Vehicle (GOV) or Privately Owned Vehicle (POV) on JBER is a privilege granted by the 673 ABW/CC. Accordingly, you must comply with the laws and instructions governing motor vehicle operation on the installation. Everyone operating a motor vehicle must maintain in their motor vehicle and produce, upon request from the SF the following:

2.1.1. A valid state driver's license and/or AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card* (if operating a GOV), supported by a Department of Defense (DoD) military identification card. **NOTE:** Must not be under suspension or revocation in any State.

2.1.2. Proof of current motor vehicle registration. Proof is defined as physical documentation describing the registered vehicle by vehicle identification number, license plate number, and expiration date.

2.1.3. Proof of current motor vehicle insurance. Proof is defined as physical or digital documentation describing the insured vehicle by VIN or license plate number, the name of the company providing coverage, a policy identification number, and the valid dates of coverage.

2.1.4. Regulatory permits or other pertinent documents relative to shipping and transportation of special cargo, when applicable.

2.1.5. Documents that establish identification and status of cargo, when applicable.

2.2. Stopping and Inspecting Personnel or Vehicles. SF may stop vehicles on JBER when violations of this instruction and/or other local or state laws are witnessed based on 673 ABW/CC authority.

2.2.1. SF may conduct examinations of vehicles/property entering or exiting the installation. These checks are commonly referred to as Random Installation Entry/Exit Vehicle Checks or Random Anti-Terrorism Measures. Searches of rental vehicles used for official military duties in lieu of government vehicles, and contractor/delivery company vehicles allowed entry through established procedures are authorized IAW DAFI 31-101, *Integrated Defense (ID)*.

2.2.2. On-base traffic stops of POVs/GOVs are authorized when there is reasonable basis to believe it's necessary to enforce a traffic regulation or when there is suspicion of criminal activity.

2.3. Implied Consent to Blood, Breath, or Urine Tests. A person in physical control of a motor vehicle on JBER will be considered to have given consent to a chemical test or tests of such person's blood, breath, or urine, if suspected of operating a motor vehicle while under the influence of a drug or alcohol.

2.3.1. The primary alcohol content testing method for all personnel will be breath, subject to availability of a certified machine and operator. Test by blood will be offered in the absence of a certified machine and operator. Refusal to submit to a chemical test will result in a 12-month revocation of installation driving privileges.

2.3.2. A driver is in physical control when in position to control the motor vehicle, whether to regulate or restrain its operation or movement. For example, sitting in a parked car behind the steering wheel, in possession of an ignition key, keeping it in restraint or in a position to control its movement is considered "in physical control." For exemptions refer to DAFI 31-218, paragraph 2-9.

2.4. Implied Consent to Vehicle Impoundment. A person who operates or drives a motor vehicle on JBER will be considered to have given consent to the removal and temporary impoundment of their POV if it: interferes with traffic; threatens public safety; is involved in criminal activity; contains evidence of criminal activity; is stolen; is abandoned; interferes with military operations; is left unattended in a restricted or controlled area; or has multiple offenses of outdated administrative paperwork.

2.5. Suspension or Revocation of on-base Driving Privileges. The 673 MSG/CC is the JBER installation commander's designated representative concerning suspension and revocation actions. Suspension and revocation actions apply to both POVs and GOVs. The 673 MSG/CC may also suspend or revoke an individual's installation driving privileges for offenses not listed by instruction or regulation.

2.5.1. Driving privileges are usually suspended when other measures fail to improve a driver's performance. Measures shall include counseling, remedial drivers training, and defensive driver training programs.

2.5.2. Driving privileges may be suspended for up to 6 months if the driver continually violates installation parking regulations. The 673 MSG/ CC determines standards for suspension based on frequency of parking violations.

2.5.3. Motor vehicle operators who are suspected of having committed an offense warranting suspension or revocation will be cited for the offense and informed that suspension/revocation action will be pursued. When such violations do not warrant immediate suspensions, violators will be instructed to contact 673d Security Forces Squadron Reports and Analysis office (SFS/S5PA) following the issuance of the citation. If warranted, 673 SFS/S5PA will initiate the suspension/revocation process.

2.5.4. Unit commanders or staff agency directors may request suspension/revocation action of on-base driving privileges for a military or civilian employee. Requests will be made, in writing, to the 673 MSG/CC through the 673 SFS/S5PA.

2.5.5. Driving privileges will be revoked as a result of a breath alcohol content (BrAC) or blood alcohol content (BAC) of 0.08% or higher, 0.04% or higher for commercial drivers, or if the operator was in physical control of a motor vehicle while under another revocation or suspension.

2.5.6. When notified of an off-base driving under the influence (DUI) or driving while intoxicated (DWI) incident involving active duty personnel, the Base Defense Operations Center (BDOC) will notify the offender's first sergeant or commander.

2.5.6.1. Pertinent information will be recorded in the SF blotter.

2.5.6.2. The 673 SFS/S5PA will initiate a request for suspension of the member's installation driving privileges once reliable evidence of the offense is obtained. Reliable evidence includes off-base military or civilian police arrest reports, chemical test results, refusal to consent to complete chemical testing, video, and other pertinent evidence.

2.5.6.3. Units learning of a military member's civil arrest or incarceration for a DWI or DUI charge by local off-base agencies are required to contact the BDOC.

2.6. Reciprocal Procedures.

2.6.1. The 673 MSG/CC will honor revocations issued by other installations, regardless of service component affiliation.

2.6.2. The 673 MSG/CC will honor suspensions on a case by case basis.

2.6.3. Anyone may petition the 673 MSG/CC for partial or limited driving privileges in accordance with **paragraph 2.7** of this instruction.

2.7. Administrative Due Process for Suspensions and Revocations. Appeal of a revocation or suspension and rebuttal of a DD Form 1408, *Armed Forces Traffic Ticket*, must be submitted as follows:

2.7.1. Refer to DAFI 31-218, paragraph 2-6, for administrative process.

2.7.2. Military personnel and government civilian employees may appeal revocations or suspensions in writing to 673 MSG/CC through their unit commander and 673 SFS/S5PA. Appeals must arrive at 673 SFS/S5PA within 14 calendar days after receipt of the revocation/suspension.

2.7.3. Military personnel and government civilian employees may submit requests for restricted GOV or POV privileges through their unit commander and 673 SFS/S5PA, to 673 MSG/CC.

2.7.4. Non-affiliated civilians, contractors, and military family members may appeal revocations, suspensions or request restricted driving privileges in writing to 673 MSG/CC through 673 SFS/S5PA. Appeals must arrive at 673 SFS/S5PA within 14 calendar days after receipt of the revocation/suspension.

2.7.5. Use of the traffic point system is mandatory in accordance with **Attachment 2** of this instruction.

2.7.6. Refer to DAFI 31-218, paragraphs 5-1 through 5-2 and Table 5-2, for a listing of the traffic points system and offenses related to suspension/ revocation of driving privileges.

2.8. Restoration of Driving Privileges After DUI Acquittal. When an official report or finding determines lack of guilt or charges are dismissed or reduced to an offense not amounting to intoxicated driving, the suspension of the individual's driving privileges may be vacated unless the preliminary suspension was based on refusal to submit to a chemical test.

2.9. Restricted Driving Privileges or Probation. The 673 MSG/CC may authorize partial or restricted driving privileges to those whose authority to drive on military installations was suspended or revoked by a military service authority. The 673 MSG/CC will ensure the individual still has valid civilian driving credentials. Reference DAFI 31-218, paragraph 2-10. and this instruction, for the appeal process.

2.10. Extensions of Suspensions and Revocations. IAW DAFI 31-218, paragraph 2-12, driving in violation of a suspension or revocation imposed under this regulation will result in the original period of suspension or revocation being increased by 2 years.

2.10.1. For Army soldiers driving in violation of a suspension or revocation imposed under this regulation will result in the original period of suspension or revocation being increased by five years. Reference DAFI-31-218, Table 5-1.

2.11. Reciprocal State-Military Action. Upon order of revocation or suspension of an individual's installation driving privileges by the 673 MSG/CC for an intoxicated driving incident, the 673 SFS/S5PA will notify the Alaska Department of Motor Vehicles (DMV) of the revocation or suspension via Alaska DMV Form 446A, *Notice and order of Revocation/Disqualification*.

2.11.1. The 673 SFS/S5PA will draft/send a DUI memorandum informing the State issuing the offender's driver's license.

2.11.2. Alaska DMV Form 453A, *Under 21 Violations-Notice and Order of Revocation,* will be used to document any incident involving a military member's underage consumption of alcohol, regardless of the amount of intoxication or influence, and will be processed in the same fashion as the Alaska DMV Form 446A.

2.12. Reinstatement of Driving Privileges. Refer to DAFI 31-218, paragraph 2-13, for reinstatement driving privileges after a suspension or revocation.

Chapter 3

MOTOR VEHICLE REGISTRATION AND DRIVING RECORDS

3.1. Motor Vehicle Registration.

3.1.1. All persons operating a motor vehicle entering JBER must ensure the vehicle has a valid state registration. License plates will be kept free of dirt, snow, or other road film hindering identification of the vehicle (including tinted covers). Motor vehicles parked or operated on the installation must display the license plates of the current registered state.

3.1.2. Motor vehicles parked at the Auto Hobby Shop awaiting parts or under construction and vehicles parked in any base recreational vehicle (RV) storage lot are exempt from this requirement.

3.2. Driving Records and Traffic Point System. Disposition of Driving Records are captured in the AFJIS and ALERTS and are accessible by Law Enforcement at any installation utilizing these systems.

Chapter 4

TRAFFIC PLANNING AND CODES

4.1. Traffic Planning: Refer to DAFI 31-218, paragraph 4-1.

4.2. Installation Traffic Code:

4.2.1. Speed Limits.

4.2.1.1. No person will drive a vehicle at a speed greater than the posted speed limit. Drivers will reduce speed to a reasonable and prudent level under existing weather, road, and traffic conditions with regard for actual and potential hazards.

4.2.1.2. The speed limit on JBER is 25 miles per hour (mph), unless otherwise posted.

4.2.1.3. An operator may not drive at a slow speed as to impede the normal flow of traffic.

4.2.1.4. IAW JBERI 91-201, *Adverse Weather Notification Procedures,* Chapter 4, current road conditions will be determined by a color-coded system of Green, Amber, Red and Black. All POV/GOV operators on JBER will comply with the speed limits applicable to the posted road condition.

4.2.1.5. During road condition Black, vehicle dispatching is prohibited unless directed by command authority. Only mission essential and emergency response vehicles are permitted to be operated; drivers will exercise caution and reduce speeds by 10 mph below the posted speed limit.

4.2.2. Traffic Offenses. Refer to **Attachment 2** this instruction, Title 2 Alaska Administrative Code 90.310, *Demerit Point Schedule,* and AS 28, for a list of traffic offenses enforceable on JBER. Also refer to **Attachment 3** of this instruction for a list of assessments for violations. **NOTE:** Points will be assessed upon issuance of 1408s issued to military and civilian members on JBER. Both military and civilian members can appeal the traffic ticket to the magistrate through 673 SFS/S5PA section. Points assessment will be removed if magistrate concurs with appeal.

4.2.3. The use of radar/laser detection devices to indicate the presence of speed recording instruments, or to transmit simulated erroneous speeds, is prohibited.

4.2.4. Supplemental Installation Traffic Code Provisions.

4.2.4.1. Motorcycles, Mopeds, and other self-propelled, open, 2-wheel, 3-wheel and 4-wheel vehicles powered by a motorcycle type engine, the following requirements apply:

4.2.4.1.1. Military personnel in a federal duty status, operating a street-legal, two-wheeled motorcycle, must attend an approved motorcycle safety course.

4.2.4.1.2. Operation of a motorcycle is not authorized on the installation during the winter months for safety concerns. The decision on when motorcycles are allowed to be ridden on JBER is made by the 673 MSG/CC, based upon a recommendation made by the 673 ABW Occupational Safety Office.

4.2.4.1.3. Operators and/or passengers will not be granted access to the installation unless they are wearing all required personal protective equipment. Safety requirements for motorcycle, all-terrain vehicle (ATV), off-road vehicles (ORV) and snowmobile (referred to as snowmachine) operation on the installation and for Air Force personnel off the installation are listed in **Table 4.1**.and **Table 4.2**.

4.2.4.1.4. Motor vehicle registrations must comply with requirements under **section 2.1,** this instruction. IAW AFI 91-207, *The US Air Force Traffic Safety Program,* operators must possess a valid motorcycle license, endorsement, or learners permit and will comply with all motorcycle safety training requirements IAW DoDI 6055.04 and AFI 91-207 Table 4.1.

4.2.4.2. Lightweight motorized scooters (GO-Ped® or similar machines) are prohibited on installation roadways unless equipped with a headlight, taillight, and turn signals.

4.2.4.3. Motorized scooters, pocket bikes, or any other motor vehicle designed as a toy and not specifically approved by the US Department of Transportation (DoT) for use on public roads **may not** be operated on any JBER roadway. The burden of proof of DoT approval lies with the operator/sponsor.

4.2.4.4. Personal Transportation Devices (PTDs) (i.e., Onewheels and Segways) may operate on JBER bike paths or sidewalks. At no time will use be allowed on roadways. Operators will adhere to all safety requirements IAW DoDI 6055.04.

4.2.4.4.1. PTDs will cross roadways only at marked or regulated intersections.

4.2.4.4.2. PTDs will not exceed 15 miles per hour.

4.2.4.4.3. All E-Bikes are authorized to be used on the shoulder of roadways. Operators must utilize a forward steady light and blinking red rear light when operation on the shoulder of roadways.

4.2.4.4.4. *All persons operating PTDs are required to wear helmets which meet ASTM F1447,* Standard Specification for Helmets Used in Recreational Bicycling or Roller Skating*, Snell Memorial Foundation* 1995 Standard for Protective Headgear *(B-95), or other host nation standard for bicycle helmets. Users are highly encouraged to use impact- or shatter-resistant eye protection, sturdy over the ankle footwear, full-finger gloves, knee and elbow pads, and brightly colored or reflective outer garment.*

Table 4.1. Motorcycle, Light Weight Scooter, ATV, ORV, and Snowmachine Safety Requirements.

JBER MOTORCYCLE, LIGHT WEIGHT SCOOTER, ATV, ORV, AND SNOWMACHINE SAFETY REQUIREMENTS
A helmet designed to meet or exceed DoT standards, worn and properly fastened below the chin.
Impact resistant goggles, wrap around glasses, or full face shield on the helmet that meets or exceeds ANSI ratings. A windshield does not constitute proper eye protection.
Long sleeve shirt or jacket and long trousers.
Full fingered gloves (non-slip type to permit a firm grip of controls).
Sturdy over the ankle footwear that affords protection for the feet and ankles (durable athletic shoes that cover the ankles may be worn).

Table 4.2. Motorcycle, Light Weight Scooter, ATV, ORV and Snowmachine Equipment Requirements.

JBER MOTORCYCLE, LIGHT WEIGHT SCOOTER, ATV, ORV AND SNOWMACHINE EQUIPMENT REQUIREMENTS
Mirrors: Motorcycles/light weight scooters will have both left and right rear view mirrors mounted on the handlebar or fairing.
Headlight: Headlight must be on whenever motorcycle is in motion.

4.2.4.5. Restraint Systems:

4.2.4.5.1. Safety Belts. All military personnel and civilians operating motor vehicles on JBER will wear safety belts.

4.2.4.5.1.1. The motor vehicle operator is responsible for all passengers to be restrained.

4.2.4.5.1.2. Operators refusing to wear a safety belt after being advised that wear is mandatory will be denied entry to the installation at any entry gate.

4.2.4.5.1.3. SF will issue all Active-Duty Military, Dependents, and DoD Civilians (including NAF employees) assigned to JBER a DD Form 1408 for failure to utilize vehicle restraints. **NOTE:** Upon receipt of the DD Form 1408, the 673 MSG/CC will immediately suspend driving privileges for military personnel IAW the driving privilege suspension listed in **Attachment 3** of this instruction. AFJIS will be annotated to reflect.

4.2.4.5.2. Except as provided in **Table 4.3**, a driver may not transport a child under the age of 12 in a motor vehicle unless the driver has provided the required safety device and properly secured each child as described in this subsection.

4.2.4.5.3. Child safety devices must be properly secured or fastened using the vehicle's restraint system. The system or seat must meet or exceed the standards of the DoT and will be used IAW the manufacturer's instructions.

Table 4.3. Child Safety Seat Requirements Based on Age and Weight.

CHILD SAFETY SEAT REQUIREMENTS BASED ON AGE AND WEIGHT			
Age	**Weight/Height**	**Restraint Type**	**Direction**
Infants less than 1 year of age	Up to 20 pounds	Infant only or rear-facing convertible with harness straps at or below shoulder level	Rear-facing Only
Toddlers at least 1 or less than 5 years of age	20 pounds or more	Forward-facing or convertible with harness straps at or above shoulders	Forward-facing
Children over 4 but less than 9 years of age	20 pounds or more but less than 65 pounds or under 57 inches	Booster seat used with lap and shoulder belt or higher weight car seat.	Forward-facing
Children over 8 but less than 12 years of age	Less than 65 pounds	Booster seat used with lap and shoulder belt or higher weight car seat for children	Forward-facing
	65 pounds or more	Seat belt must cover chest, lap belt must cover thighs	Forward-facing

4.2.4.6. Headphones, earphones, cellular phones, or other listening and entertaining devices while driving, walking, jogging, riding a bicycle, skateboarding, rollerblading or operating any PTD on any street, roadway, or other surface (including parking lots and road shoulders) specifically engineered for motorized vehicles are prohibited. Use of these devices impairs driving and masks or prevents recognition of emergency signals, alarms, announcements, the approach of vehicles, animal activity, and human speech. **Exceptions:**

4.2.4.6.1. Sidewalks, paved or unpaved running paths/trails, or other similar recreational areas not intended for motorized vehicle use are not subject to this requirement.

4.2.4.6.2. Personnel operating a motorcycle may use an integrated intercom system designed to provide communication between an operator and passenger.

4.2.4.6.3. Personnel operating a motor vehicle are authorized to use a single hands-free device intended only for communicational purposes, while operating a motor vehicle on JBER.

4.2.5. Off-installation violations (for example, use of cell phone while operating GOV without a hands-free device) of this traffic code will not result in on base point assessment. However, may result in administrative actions against service members.

4.2.6. Traffic offenses listed in AS 28, are enforceable on JBER under the authority of US Code, Title 18, Section 13.

4.2.7. ATV, ORVs, and snowmachine information, operation, and authorized areas.

4.2.7.1. Permits and Registration. Assigned personnel operating ATVs, ORVs, or snowmachines on the installation trail system must obtain a RecAccess permit through the **https://jber.recaccess.com/** website.

4.2.7.1.1. All ATVs, ORVs and snowmachines are required to be insured and registered with the state of Alaska. Riders will be issued a $50 dollar fine for ATVs/snowmachines that are not registered with the state of Alaska.

4.2.7.1.2. Operators of privately-owned off-road vehicles and off-road vehicles controlled by AF Services on JBER must have proof of training such as Motorcycle Safety Foundation or Specialty Vehicle Institute of America course before operating on the range.

4.2.7.2. Operation Procedures for ATVs, ORVs, and snowmachines. Operation on JBER is permitted in designated areas only. Information may be obtained on the RecAccess website or current JBER recreation website. The Base Natural Resources Office will open trails and lakes as instructed by 673 MSG/CC.

4.2.7.2.1. Safety Requirements. ATVs, ORVs, and snowmachines will have an operational headlamp and taillight and be equipped with a throttle, which when released by hand, will return the engine speed to idle. All off-road vehicles must have an effective muffler system to reduce noise.

4.2.7.2.2. Visitors may operate ATVs, ORVs, and snowmachines on JBER when accompanied by a qualified RecAccess permit holder, who accepts responsibility for persons in the group.

4.2.7.2.3. Required Individual Safety Equipment for ATVs, ORVs, and snowmachines. All operators and passengers must wear protective devices as described in **Table 4.1**.

4.2.7.2.4. Operation of ATVs, ORVs, or snowmachines, specifically designed for youth, is permitted when accompanied by a qualified and knowledgeable person over 16 years of age. The youth must be in plain sight.

4.2.7.2.5. During summer months, ATVs and ORVs must be transported (not ridden) to and from authorized areas, as designated by Base Natural Resources Office.

4.2.7.2.6. Snowmachine operation prior to the accumulation of a sufficient depth of snow (12 inches) and operation on frozen lakes (until the ice is 6 inches thick) is prohibited.

4.2.7.2.7. Snowmachines may travel through housing areas only by the most direct route to the nearest trail. Speed will not exceed 10 mph.

4.2.7.2.8. Snowmachine operation is permitted from 0600-2200 daily.

Table 4.4. Prohibited Areas.

JBER ATV, ORV, AND SNOWMACHINE PROHIBITED AREAS
Housing areas and main base (restricted to authorized trails reached by the most direct route) specifically including, but not limited to:
Taxiways and runways; sidewalks and seeded areas; playgrounds and picnic areas.
The 381 Intelligence Squadron antenna farm adjacent to 46th Street.
Gasoline storage areas in the area of 46th Street and Airlifter Drive.
Munitions storage area north of Six-Mile Lake on 46th Street.
In any restricted or controlled area on the installation.
Within 50 feet of any static display aircraft.
Family Camp area, Base gas stations, and food drive-throughs.
Army Air Force Exchange Services facility/shoppette parking lots.

4.2.7.3. Snowmachine/ATV/ORV Storage. All personnel residing on JBER will store their snowmachines in their garages, at an approved 673d Force Support Squadron (FSS) RV storage lot, or in an off-base storage facility.

4.2.7.3.1. Temporary parking of snowmachines is permitted on paved surfaces in the base dormitory/family housing areas for periods not to exceed 48 hours for maintenance and to load/unload before or after trips.

4.2.7.3.2. Snowmachines/ATVs/ORVs will not be parked or stored on the lawns.

4.2.7.4. Protection of Wildlife and Natural Resources. No one, while operating a snowmachine/ATV/ORV within the limits of JBER, will willfully destroy natural resources or harass wildlife. Operating a snowmachine/ATV/ORV through lakes, streams, or wetlands is prohibited.

4.2.7.5. Areas Posted as Prohibited. No one will operate a snowmachine/ATV/ORV in areas posted with signs stating, “No Snowmobiling,” “No ATVs or Snowmachines,” “Trail Closed,” or “Motorized Vehicles Prohibited.”

4.2.7.6. Specially equipped ATVs and ORVs in housing areas. ATVs and ORVs equipped with snow removal equipment may be operated in the family housing areas specifically for snow removal only.

4.3. Traffic Law Enforcement Principles. No person will willfully fail or refuse to comply with any lawful order or direction of any traffic enforcement officials or persons directed by SF to control traffic.

4.3.1. **Prohibited Practices:**

4.3.1.1. **Eluding an Enforcement Official.** The emergency signals given by the enforcement official may be by hand, voice, whistle, emergency light, or siren.

4.3.1.1.1. Any driver of a motor vehicle who willfully fails or refuses to bring their vehicle to a stop or who otherwise flees or attempts to elude pursuing SF vehicles will be cited, detained, and/or apprehended.

4.3.1.1.1.1. Military members may be apprehended for a violation of Title 10 Chapter 47 Uniform Code of Military Justice §892 Article 92, *Failure to Obey Order or Regulation*.

4.3.1.1.1.2. Military members will be released to their unit commander/First Sergeant. Civilian personnel will be released to their employer/supervisor/sponsor. Vendors or contractors whose supervisor is not readily available will be escorted from the installation upon completion of required paperwork.

4.3.1.1.2. An AFJIS Report will be accomplished detailing the nature of the offense (for both civilian and military offenders).

4.3.1.2. **Eluding Traffic Control Devices.** It's unlawful for any person to drive through parking lots or other areas to elude specific traffic control devices, to include signs, stanchions, and persons controlling traffic, unless directed to do so.

4.3.1.3. **Crossing Fire Hose.** Motor vehicle operators will not drive over an unprotected fire hose laid down on any roadway during an emergency response, unless directed to cross by SF or fire department personnel.

4.3.1.4. **Driving in Prohibited Areas.** Operators will not drive vehicles in areas prohibited by this instruction. The driver of a vehicle will not drive through an area that is posted, marked, or barricaded by means of barriers, traffic cones, or signs.

4.3.1.5. **Limitations on Backing.** A GOV operator will not back a vehicle unless such a movement can be made safely. When backing vehicles with limited vision to the rear, a spotter will be used. If no spotter is available, the operator, prior to backing, will visually check the area in which the vehicle will be backed. A GOV operator will sound the horn prior to backing in addition to other measures in this paragraph.

4.3.1.6. **Overtaking and Passing Foot Troops.** All drivers will yield the right-of-way to all formations of foot troops marching on a street or roadway on JBER.

4.3.1.6.1. Drivers are responsible to obey posted 15 mph physical training zones and be cognizant of their times. The maximum speed while passing troops using the roadway (from any direction) is 10 mph.

4.3.1.6.2. If overtaking a formation going in the same direction, the operator will not pass the formation until signaled or motioned by the troop commander.

4.3.1.6.3. When meeting a formation going in the opposite direction, the operator will reduce speed and pass with caution.

4.3.1.7. Yield to pedestrians who are in marked areas designated as crosswalks.

4.3.1.8. Authorized Emergency Vehicle Exceptions: When responding to a dispatch, or a SF vehicle in the pursuit of a suspected violator of the law, may within reason and with due regard for the safety of all persons, exercise the following privileges only when using authorized visual and audible signals:

4.3.1.8.1. Park or stand, irrespective of the provisions of this instruction, provided they do not create a traffic hazard and the parking is for official reasons.

4.3.1.8.2. Proceed past a red light, stop signal, or stop sign only after using all emergency lights and sirens. Emergency vehicles must not assume they have the right of way and are responsible to proceed only when safe to do so.

4.3.1.8.3. Exceed the maximum speed limits, as long as this does not endanger life or property and is limited to "*Code 3"* responses (potential life or death situations).

4.3.1.8.4. Disregard regulations governing direction of travel or turning in specified directions as long as these actions do not needlessly or unduly endanger life or property.

4.3.2. **Open Container.** No person may operate a vehicle with an open container of an alcoholic beverage in the passenger compartment of the vehicle.

4.3.3. **Unattended Vehicles:** No vehicle operator will park a vehicle or motorcycle without first stopping the engine, locking the ignition, and removing the key. The following exceptions apply:

4.3.3.1. Emergency equipped vehicles may be left running unattended when emergency equipment is operating and needed to maintain power for accessories.

4.3.3.2. During winter periods, vehicles may be left running unoccupied for no more than 15 minutes to warm up the engine prior to operating.

4.3.3.2.1. Motor vehicles should have a properly installed remote start device which disables the vehicle when the key is not in the ignition if someone attempts to tamper with it.

4.3.3.2.2. Operators are responsible for safety and security of vehicles (vehicle must be locked). Motor vehicle operators are prohibited from leaving a vehicle running, with keys in the ignition, while entering a facility (for example: stopping at the Commissary or other shopping place, Post Office, or picking up/dropping off at schools or Child Development Centers).

4.3.4. **Unattended Children in Vehicles:**

4.3.4.1. Children under 5 years of age will **never be left unattended in a vehicle.**

4.3.4.2. Children over 6 years of age and less than 18 years of age will not be left unattended in vehicles that are not running during periods of severe weather or under any conditions for periods that exceed 15 minutes.

4.3.4.3. Children under 12 years of age will not be left unattended in a running motor vehicle.

4.3.5. **Vehicles Under Maintenance.** Motor vehicles will not be left unattended on jacks. Motor vehicles that must have wheels removed for extended periods of repair or vehicle maintenance will be lowered onto jack stands and have other wheels chocked.

4.3.6. **Safe Operation of Motor Vehicles:**

4.3.6.1. No person will operate a motor vehicle with more occupants than available restraint devices.

4.3.6.2. No person will operate a POV or GOV with personnel in the cargo area (for example, truck bed, trunk, etc.) of the vehicle.

4.3.6.3. Any motor vehicle carrying a payload which hinders the steering, braking or stability of a vehicle will not be operated on JBER.

4.3.6.4. Animals in uncovered vehicles must be tethered to prohibit the animal from exiting the vehicle while in motion.

4.3.6.5. All limbs and/or body parts must remain inside the vehicle at all times when in motion. It is the driver's responsibility to ensure all occupants comply with this paragraph. **Exception:** The driver may hang their arm out the window to provide physical turning indications (hand signals).

4.3.6.6. All vehicles must be maintained in a condition consistent with safe operation on a public roadway.

4.3.6.6.1. Motor vehicles found to be unsafe will not be operated. Individuals operating an unsafe motor vehicle will be in violation of this instruction and 13 AAC, chapter 4, *Motor Vehicle and Driving Offenses: Vehicle Equipment and Inspection*.

4.3.6.6.2. Owners must contact a towing company to remove an unsafe motor vehicle to a vehicle maintenance location (Auto Hobby Shop or off-base repair shop).

4.3.6.6.3. If the motor vehicle is not removed, the operator will be cited for the offense and have 72 hours to fix the condition. If proof of correction is provided to the BDOC, the citation may be voided and forwarded to 673 SFS/S5PA.

4.3.6.7. Motor vehicles must have fenders, mud flaps or other anti-spray device to prevent the vehicle from being a hazard to other vehicles.

4.3.7. **Driving With Obstructed Vision or Safety/Warning Lights.** No operator will operate a motor vehicle without first clearing all windows (front, side, and rear) of all obstructions. Operators will also clear obstructions, snow, ice, and dirt from all headlights, safety lamps, warning lights, and license plates.

4.3.7.1. Motor vehicles which are not cargo vehicles will not be loaded in a way that restricts visibility to the rear.

4.3.7.2. Tinted license plate covers or tinted light covers may not be used on JBER. Clear covers are authorized as long as the plate is clearly visible. Scratched or faded plate covers are not authorized.

4.3.8. **Headlight Requirements.** Headlights will be used 30 minutes prior to sunset until 30 minutes after sunrise, and when visibility is reduced. The use of parking lights, when a vehicle is in motion during reduced visibility/hours of darkness is only allowed while vehicles are entering installation entry control points.

4.3.9. **Extended Bumpers.** POVs having extended bumpers to accommodate cab-over campers will not exceed a length of 18 inches when the camper is dismounted from the vehicle. Those bumpers, which cannot be shortened to 18 inches, will display two red lights activated by tail and brake lights.

4.3.9.1. Rear turn signals must be visible from a distance of at least 150 feet.

4.3.9.2. One reflector must be mounted on each side of the bumper to call attention to the extended length.

4.3.10. **Cellular Phone Use.** Use of cellular phones while operating a motor vehicle is prohibited at all times unless the vehicle is safely parked, or the vehicle operator uses a single-ear or hands-free device.

4.3.11. **Motor Vehicle Accessory Deficiencies.** Persons will not operate a motor vehicle on JBER that does not comply with state of Alaska, Air Force, or DoD safety requirements. All safety devices (lights, brakes, emergency brake, turn indicators, back-up indicators, seatbelts, and horn) installed by the vehicle manufacturer, must be operational.

4.3.11.1. All individuals cited for defective safety equipment may have up to 72 hours to report to JBER Police Officer with the citation to verify the defect has been corrected. After 72 hours, persons issued a *United States District Court Violation Notice* will pay the fine or appear at their designated court date to show the deficiency has been corrected.

4.3.11.2. Persons issued a DD Form 1408 who do not report within 72 hours, will be assessed points.

4.3.11.3. Unsafe or defective vehicles identified as causing a vehicle accident, will result in the suspension of the vehicle operator's base driving privileges for 6 months.

4.4. Speed Measuring Devices/Traffic Stops.

4.4.1. SF are authorized to use laser radar, conventional Doppler radar, and vehicle pace methods to measure vehicle speeds. SF is not required to show the individual the measured speed result on the laser radar or radar.

4.4.2. When vehicle operators are signaled to pull over, they will pull over to the curb or outermost edge of the roadway in a safe manner and come to a complete stop. The vehicle operator must put the vehicle in park, set the emergency brake, and comply with any additional verbal SF instructions.

4.5. Installation Law Enforcement Personnel: Must make detailed investigations of accidents described below:

4.5.1. Accidents involving GOVs or Government property on the installation.

4.5.2. Any POV accidents on the installation involving a fatality, personal injury, or when a POV is inoperable as a result of an accident that occurred on JBER is considered a "major accident".

4.5.2.1. An accident will not be deemed a major accident based solely on the cost of damage.

4.5.2.2. Any clarifications on determining if an accident is deemed a major accident is the responsibility of a certified 673d Security Forces Squadron (SFS) Collision Investigator/Traffic Safety Section.

4.5.2.3. 673 SFS Collision Investigators/investigating patrolmen may impound a motor vehicle involved in an incident that is pending further investigation upon 673 MSG/CC approval.

4.5.3. Accidents determined as minor will be recorded via AF Form 1315. Information will be exchanged between all parties involved and a blotter entry will be made.

4.6. Traffic Accident Investigation Reports. The traffic accident investigator will complete the AF Form 1315, *Accident Report*, within 72 hours, unless granted an extension by the Security Forces Operations Superintendent.

4.6.1. Motor vehicle operators involved in a traffic accident will immediately notify the BDOC at 907-552-7070, if one or more vehicles are government owned or if the accident is considered a major accident (one or more vehicles are disabled, any type of vehicle fluid is leaking or if any members involved were injured). When the operator of a vehicle is physically incapable of giving immediate notice of an accident and there is an individual in the vehicle at the time capable of doing so, that person will notify the BDOC immediately.

4.6.2. Motor vehicle operators involved in a minor traffic accident (see **Attachment 4**) will exchange information at the scene of the accident. Drivers may opt to exchange information and handle it amongst themselves rather than report the accident to BDOC.

4.6.3. If the operator of a motor vehicle strikes an unattended vehicle, they must attempt to contact the owner of the unattended vehicle. The operator is required to leave a note (containing contact information), in a conspicuous location on the unattended vehicle, prior to attempting to locate the owner. If the operator is unable to locate the owner, he or she will contact the BDOC and await the arrival of SF patrols. If the operator successfully locates the owner of the vehicle, refer to **paragraph 4.6.2**, of this instruction.

4.7. Access to Traffic Accident Investigation Report Data. Copies of AF Form 1315 will be provided to the drivers or owners of the vehicles involved upon request to 673 SFS/S5PA. Copies of reports will be available approximately one week after the date of the accident.

4.8. Parking. Motor vehicles will not be parked in areas marked or designated as reserved parking, or where it is prohibited by signs, markings on the pavement or adjacent curb, or other provisions of this code.

4.8.1. No person will stop, stand, or park a vehicle, unless necessary to avoid other traffic or comply with the directions of an enforcement official, in any of the areas listed in Tables **4.5 and 4.6**.

Table 4.5. Proximity Parking Areas.

JBER PROXIMITY PARKING AREAS	
Do Not Park Within	**Locations/Situations**
50 Feet	Hangars, ammunition/fuel storage areas, except in designated parking spaces.
30 Feet	Of approach side of a flashing signal, stop sign, yield sign, or traffic control signal located at the side of roadway
20 Feet	Crosswalks.
15 Feet	Trash containers/dumpsters; furnace room doors; building exits (except for loading/unloading); Fire hydrants; US Post Office mailboxes.
15 Feet	Campers, trailers or motorhomes within stated distance to buildings.
10 Feet	Buildings/structures (except in designated parking spaces).

Table 4.6. No Parking Areas..

JBER NO PARKING AREAS	
No Parking	**Locations/Situations**
No Parking	Opposite the flow of traffic.
No Parking	POVs are not allowed to park inside buildings that are not motor pools or vehicle warm storage buildings.
No Parking	On or along public roadways or non-residential parking lots for longer than 48 consecutive hours.
No Parking	In fire lanes or other areas prohibited by signs or markings.
No Parking	On grass or seeded areas (unless specifically permitted by 673 MSG/CC during special events).
No Parking	In such a manner that impedes the free flow of traffic in an authorized thoroughfare.
No Parking	On sidewalks or walkways designated for pedestrian traffic.

4.8.2. JBER Long-Term Parking Areas.

4.8.2.1. Unit Commanders are authorized to allocate a portion of their assigned unit parking areas as mass deployment parking for individual deplorers but must coordinate these actions with 673d Civil Engineer Squadron snow and ice control leadership during snow season to ensure removal operations can continue.

4.8.2.2. There are three principle designated areas for long-term parking.

4.8.2.2.1. Fenced area located on the east side of Doolittle Avenue, is available for general long-term parking.

4.8.2.2.2. West of facilities 7079, 7083, and 8005, is for unaccompanied housing resident long-term parking.

4.8.2.2.3. Warehouse Street and Circle Drive, which must be coordinated with 773 LRS.

4.8.3. Parking in Housing Areas. **NOTE:** This includes all temporary lodging facilities and lodging facilities for people in permanent change of station or temporary duty status. Refer to the Aurora Military Housing Handbook along with current supplement changes for further explanation of permissible activities and restrictions.

4.8.3.1. Motor vehicles must be parked in a driveway, marked parking area, or on the street with the flow of traffic.

4.8.3.2. Motorcycles must be stored at an approved lot during winter months or in housing garages.

4.8.3.3. Motorhomes, campers, and trailers, whether recreational, boat, or utility, will not be parked in housing areas or dormitory parking lots for maintenance or pre/post trip loading/unloading for any period greater than 48 hours. **NOTE:** Motorhomes, campers, and trailers must be stored at an authorized 673d Force Support Squadron (673 FSS) storage area on base or off-base at a facility of the owner's choosing.

4.8.3.4. Major maintenance such as bodywork and disassembly of transmission or the motor, will not be performed on vehicles in any parking areas, housing areas, or construction areas.

4.8.3.5. Minor repairs, such as changing tires, fan belts, wheel cylinder, and motor tune-ups are authorized (with the exceptions of oil and/or transmission fluid changes which remain prohibited).

4.8.4. Parking While on TDY/Leave Status.

4.8.4.1. Base housing residents who are departing TDY or on leave may leave their primary means of transportation parked in base housing in a normal manor during that period of time. They will ensure there is a point of contact (POC) name and phone number available who can move the vehicle if the need arises.

4.8.4.2. Dormitory/Barracks residents who are departing TDY or on leave, must either ensure there is a POC's name and phone number available who can move the vehicle if the need arises, or park in the long-term parking area. The POC's name and phone number who can access/move the vehicle will be left with the unit First Sergeant and the Dormitory Manager and be positioned inside the vehicle on the dashboard where it can be read through the windshield. **NOTE:** Motor vehicles left at the dormitories during TDY or leave periods must be in compliance with all other provisions of this instruction regarding state registration (at the time of departure) and vehicle condition/serviceability.

4.8.4.3. Personnel living on or off the installation who are departing TDY may leave their vehicle in a long-term parking area designated by the respective unit commander. A POC's name and phone number who can access/move the vehicle will be left with the unit First Sergeant and visibly positioned inside the vehicle on the dashboard where it can be read through the windshield.

4.8.4.4. Alaska National Guard commanders authorize parking while on TDY/Leave status at Building 49000, Building 17470, and Camp Carrol. Appropriate POC placards will be placed on the dashboard of the vehicle while left unattended. Placards must display; owner, unit, unit POC contact information, reason, and date of anticipation return date.

4.8.5. Personnel who use the Air Mobility Command (AMC) passenger terminal for a flight may park in the AMC long-term parking area for a period not to exceed 60 days. Owners will register the vehicle with AMC terminal personnel. Owners must receive approval in writing.

4.8.6. Special Parking Situations. Base housing residents are authorized to park on sidewalks and in "no parking" zones during snow removal operations only.

4.8.6.1. All attempts to legally park a vehicle must be exhausted before parking on sidewalks or in "no parking" zones.

4.8.6.2. No vehicle will be parked in a manner which creates a safety hazard.

4.8.6.3. Motor vehicles must be immediately parked in legal parking spaces within 2 hours following snow removal operations.

4.8.7. Lock-outs. Operators who are locked out of their vehicles may contact the Fire Dispatcher or the BDOC (who will then request assistance from the fire department) for assistance only if one of the following circumstances exists (in all other circumstances the vehicle operator will be directed to contact an off-base vendor for assistance):

4.8.7.1. A child is locked in vehicle.

4.8.7.2. The vehicle is impeding traffic.

4.8.7.3. The vehicle is running with an unrestrained pet inside.

4.8.8. Motor Vehicle Resale. Motor vehicles advertised for sale will not be posted in any area for the specific purpose of advertisement, unless parked at the "For Sale" lot. **NOTE:** If the motor vehicle is the seller's primary means of transportation, it can be driven and parked according to normal rules.

4.8.9. Parking Warden Program:

4.8.9.1. Commanders may designate personnel in the grades of SSgt or above to assist SF in parking enforcement. Parking wardens will only issue DD Form 1408s for parking violations or expired registration and contact the 673 SFS/S2I section for any abandoned vehicles.

4.8.9.2. Appointments will be made, in writing, to 673 SFS/S5PA and include up to two personnel per unit. Letters must be updated annually during the month of January or as changes occur. Include the nearest building number to the parking lots where enforcement will occur. The 673 SFS/S5PA and 673d Security Forces Squadron Operations Support (SFS/S3OP) will monitor the program.

4.8.9.3. The 673 SFS/S5PA will train all personnel appointed as parking wardens. Wardens will issue DD Forms 1408. It's important that monitors include how or where they can be reached by the violators. When contacted by the violator, the monitor will fill in any pertinent missing data in Sections 1-10. Forms that are incomplete or that were written by personnel not designated as a parking warden will not be processed and will be returned to the unit or destroyed.

4.8.9.4. Parking wardens will forward all completed DD Forms 1408 to 673 SFS/S5PA within 3 duty days following contact with the violator.

4.8.10. Reserved Parking. When not addressed by major commands (MAJCOM), installation commanders determine reserved parking policy for their installations.

4.8.10.1. Number of available spaces, facility design and layout, traffic flow, and number of vehicles using facilities will help determine the number and location of reserved parking spaces.

4.8.10.2. The installation commander determines policy and procedures governing reserved parking.

4.8.10.3. The publication must address approval, issue, control, and review of reserved parking and will give special consideration to bicycle, motorcycle, visitor, and carpool parking.

4.8.11. Requests for reserved parking slots are submitted on AF Form 332, *Base Civil Engineer Work Request*. It must be coordinated through 673d Security Forces Squadron Operations Support (SFS/S3OP) and 673d Civil Engineer Squadron Production Control (CES/CEOMP).

4.8.12. Handicap parking is regulated under the Uniform Federal Accessibility Standards and applies to all Air Force installations.

4.9. Traffic Violation Reports (Citations). DD Form 1408 and *United States District Court Violation Notice* are both used on JBER.

4.9.1. All traffic violators on military installations will be issued either a DD Form 1408, or a *United States District Court Violation Notice*, as appropriate. Unless specified otherwise by separate Service/Defense Logistics Agency policy, only on-duty law enforcement personnel, game wardens and parking wardens, who are designated by the installation law enforcement officer, may issue these forms. Air Force individuals certified under the Parking Traffic Warden Program may issue DD Form 1408 in areas under their control. SF will use AFJIS to complete an AF Form 3545A, *Incident Report*, when a lengthy explanation is required for serious violations such as drunk, negligent, or reckless driving.

4.9.1.1. Active-Duty Military Dependent and DoD Civilians (including NAF employees) assigned to JBER will be issued a DD Form 1408s for infractions listed in **Attachment 2** of this instruction.

4.9.2. SF will use the traffic complaint report to record all complaints of traffic violations from the base populace and notify unit First Sergeants upon contact with the subjects of complaints.

4.9.2.1. SF patrolmen will not issue citations to subjects of traffic complaints. Appropriate action by SF patrolmen will be taken when the complaint details a crime supported by physical evidence (for example, hit and run).

4.9.2.2. For non-criminal traffic complaints, the subject will be notified of the complaint, afforded the opportunity to make a statement, and advised on applicable traffic laws.

4.9.3. Persons subject to the UCMJ are subject to trial by court-martial or punishment under Title 10 United States Code Chapter 47 UCMJ Section 815 Article 15, *Commanding Officer's Non-Judicial Punishment*. Violations of the provisions of this instruction, other applicable regulations, directives, or laws pertaining to traffic, are subject to other types of disciplinary or administrative action deemed necessary by the unit commander.

4.9.4. Persons not subject to the UCMJ can be cited IAW this instruction or Alaska state law and may be subject to trial before a US Magistrate for violations of law pertaining to traffic.

4.9.5. All persons are subject to administrative action by the installation commander, or designated representative, for violations of this instruction.

4.9.6. When a *United States District Court Violation Notice* is issued, points will be assessed IAW **Attachment 2** of this instruction.

4.10. Standards and Procedures for Processing Intoxicated Drivers:

4.10.1. The 673d Security Forces Squadron Training Section (SFS/S3T) is responsible for training SF personnel in the recognition of intoxicated drivers and certifying them on administration of the National Highway Traffic Safety Administration Standardized Field Sobriety Tests. In addition, S3T is responsible for coordinating the certification of SF personnel on the Data Master breath-testing device.

4.10.2. Only a person certified as an operator under Title 13 Alaska Administrative Code (AAC) 63.050, *Breath Test Operator Certification,* may operate the Data Master. To certify as an operator, the applicant must successfully complete an 8-hour course of instruction approved by the Scientific Director of the Alaska Department of Public Safety Scientific Crime Detection Laboratory.

4.11. Blood Alcohol Concentration Standards:

4.11.1. BrAC or BAC of 0.08% or higher:

4.11.1.1. Civilian persons operating a motor vehicle with a BrAC or BAC of 0.08% or higher will be cited by 673 SFS for DWI or may be processed by Anchorage Police Department (APD).

4.11.1.2. Military members will be charged with violation of Title 10 United States Code Section 913 UCMJ Article 113, *Drunken or Reckless Operation of a Vehicle, Aircraft, or Vessel*. Persons thus charged will be subject to a one year revocation of driving privileges. The 673 SFS/S5PA will forward an AK DMV Form 446A to the Alaska DMV in cases where military offenders are stopped on-base, so appropriate license revocation/suspension action can be taken by the offender's state of issue.

4.11.2. BrAC/BAC of less than 0.08%:

4.11.2.1. When a person has a BrAC/BAC of less than 0.05%, it is presumed the person is not under the influence of alcohol. If the percentage is 0.05% or above, but less than 0.08%, it is presumed the person is impaired.

4.11.2.2. The SF Patrolman will consider this standard with other competent evidence in determining if the level of intoxication is sufficient to prevent safe operation of the vehicle. Examples of competent evidence include: reckless driving, vehicle accident, involuntary expulsion of bodily fluids or unconsciousness.

4.11.3. Any individual found to have alcohol in their system will not be permitted to operate a noncommercial vehicle for 12 hours and or a commercial vehicle within 24 hours IAW Alaska Department of Administration Division of Motor Vehicles Form 446A and Form 453A.

4.11.3.1. Operators suspected of DWI who are not charged or cited with the offenses based on the results of BrAC testing, but who do have detectable levels of alcohol in their system, will be released.

4.11.3.1.1. Military personnel will be released to their unit First Sergeant (or designee) for transport.

4.11.3.1.2. Civilian personnel will be released on their own recognizance.

4.12. Chemical Testing Policies and Procedures:

4.12.1. SF will use the Data Master/Compact Data Master breath-testing device as the primary means to establish BrAC after sufficient probable cause has been established. Voluntary submittal of blood sample will be determined on a case by case basis. Refer to **paragraph 4.15** for limitations on involuntary fluid extractions.

4.12.2. Before providing a sample, the individual suspected of an intoxicated driving offense must be observed for at least 15 minutes immediately before testing, ensuring the suspected person does not drink, eat, smoke, chew tobacco, ingest any substance, or expel any bodily fluids. The 15-minute observation period will be conducted at the BDOC or other location where the Data Master is physically located.

4.12.3. A verification of calibration of the Data Master must be completed once every 60 days. The report is submitted to the Scientific Director of the Alaska State Crime Lab. The unit Data Master Supervisor is responsible for completing any report and notifying the Scientific Director if the Data Master is to be taken off-line, moved, or transported for service.

4.12.4. Medical authorities will conduct tests for the presence and concentration of alcohol or other drugs in the blood, bodily fluids, or tissues of any person killed in an on- base motor vehicle accident or mishap.

4.13. Detection, Apprehension, and Testing of Intoxicated Drivers. SF personnel will stop any vehicle displaying unusual or abnormal driving behavior and determine the cause of their unusual driving behavior. If the operator is suspected of being intoxicated, SF patrolmen will administer SFSTs, record their observations on the DD Form 1920, *Alcohol Incident Report*, and apprehend/arrest the operator if sufficient evidence of impairment is established.

4.14. Voluntary Breath and Bodily Fluid Testing Based on Implied Consent:

4.14.1. SF personnel will administer tests based on implied consent when a person is legally stopped while operating or in physical control of a motor vehicle on the installation.

4.14.2. When advising the driver that failing to consent to a chemical test will result in a revocation of their installation driving privileges, SF will also advise that the results of chemical tests obtained under implied consent are admissible as evidence in judicial and non-judicial proceedings.

4.14.3. Individuals who have hemophilia, other blood-clotting disorders, or any medical or surgical disorder under treatment with an anticoagulant may refuse a blood extraction without penalty. SF will offer a breath or urine test to these individuals. Valid refusals for these conditions must have the concurrence of a medical doctor.

4.14.4. If a person suspected of intoxicated driving refuses to submit, do not administer a test except as specified in **paragraph 4.16**.

4.15. Involuntary Extraction of Bodily Fluids in Traffic Cases: These procedures apply only to the investigation of intoxicated driving related offenses and are explained in detail in the Military Rules of Evidence (MRE) 312d, *Extraction of Body Fluids*, Manual for Courts-Martial (MCM) United States, and AFI 44-102, *Medical Care Management.*

4.15.1. Involuntary bodily fluid extractions (blood and urine) require a valid search and seizure authorization pursuant to MRE 315, *Probable Cause Searches*, and the MCM.

4.15.1.1. Forced extractions are considered only when the individual is involved in an accident in which there is death, serious personal injury, or significant property damage.

4.15.1.2. A Search and Seizure Authorization is not required when there is a clear indication that evidence of intoxication will be found and there is reason to believe that the delay to obtain search authorization would result in the loss or destruction of the evidence.

4.15.1.3. Warrantless searches will only be conducted after coordination with the SJA and after attempts at obtaining search and seizure authorization have failed due to unavailability of the appropriate commander or magistrate.

4.15.2. If search and seizure authorization is not obtained due to unavailability of the appropriate commander or magistrate, the commander of a medical facility is empowered to authorize the extraction from an individual located in the facility at the time an authorization is sought.

4.15.2.1. Before authorizing the extraction, the commander must consult with SJA.

4.15.2.2. The commander need not be on duty and any qualified medical person can perform the extraction.

4.16. Testing at the Request of the Apprehended Person:

4.16.1. An individual subject to implied consent tests can request additional testing. The requesting individual will pay for these tests, and the tests must be performed at an approved facility, such as an off-base hospital or research facility as soon as possible, noting any delay on the test documents. If the requesting individual desires admissibility of these tests in a military or civilian court, the test and testing method must be approved by the state of Alaska.

4.16.2. The apprehending official may assist the individual requesting additional tests. However, tests conducted under authority of the UCMJ remain valid when circumstances prevent timely release of the individual or any other reason additional testing is not completed.

4.17. Off-installation Traffic Activities. APD enforces traffic laws in areas not under military control. If APD is found to have primary jurisdiction over an incident occurring on JBER, copies of all reports and associated materials will be provided to APD.

4.18. Compliance with Local and State Laws. All personnel operating motor vehicles on JBER will comply with local and Alaska state traffic laws.

4.19. Noise and Pollution Control:

4.19.1. No person will operate a vehicle emitting excessive sound, whether mechanical or stereo, or a vehicle that emits or leaks excessive smoke or fluids. Excessive sound is defined as a sound which will cause a normal person to shout or significantly raise the tone of voice to effectively communicate.

4.19.1.1. Accelerating a vehicle in such a manner as to cause a loud or unusual noise is prohibited.

4.19.1.2. Sounding a horn is prohibited except to avoid accidents or when backing a GOV.

4.19.2. All motor vehicles, including automobiles, trucks, snowmachines, motorcycles, ATVs, and ORVs are prohibited from being operated in and near on-base residential areas in such manner as to create a disturbance of the peace through operation or excess noise regardless of the time of day.

Chapter 5

IMPOUNDING PRIVATELY OWNED VEHICLES

5.1. General. This policy is based on the interests of the Air Force in crime prevention, traffic safety, and the orderly flow of vehicle traffic. The 673d Security Forces Squadron Investigations Office (SFS/S2I) is the POC for all impounded vehicles on JBER.

5.2. Implied Consent to Vehicle Impoundment. As a condition to accepting installation driving privileges, drivers give their consent for the removal and temporary impoundment of their POV. Drivers also agree to reimburse an authorized agency or contractor for the cost of towing, storage, and disposal shall a need arise to remove or impound their vehicle. **Table 5.1** lists some of the reasons, but is not all inclusive, a POV will be impounded.

Table 5.1. Reasons for Privately Owned Vehicle (POV) Impoundment.

REASONS FOR POV IMPOUNDMENT	
Illegally Parked:	In a “tow–away” zone that is so marked with proper signs.
	On a street or bridge, in a tunnel, or is double-parked.
	On a sidewalk, within an intersection, on a crosswalk, on a railroad track, in a fire lane, or is blocking a driveway, so that the vehicle interferes with operations or creates a safety hazard to other roadway users or the general public. An example would be a vehicle parked within 15 feet of a fire hydrant or blocking a properly marked driveway of a fire station or aircraft–alert crew facility.
	When blocking an emergency exit door of any public place (installation theater, club, dining hall, hospital, or other facility).
POV Interferes with:	Emergency operations during a natural disaster or fire or must be removed from the disaster area during cleanup operations.
	Street cleaning or snow removal operations and attempts to contact the owner have been unsuccessful.
	The orderly flow of traffic and or military operations.
Associated with a Crime:	The POV has been used in a crime or contains evidence of criminal activity.
	The owner or person in charge has been apprehended and is unable or unwilling to arrange for custody or removal of POV.
Unsafe/ Mechanically Unsound	The POV is mechanically defective or is a danger to others using the public roadways.
	The vehicle presents an Environmental Protection Agency (EPA) violation i.e. gas, oil, or coolant fluid leak.
	The POV is disabled by a traffic incident and the operator is either unavailable or physically incapable of having the vehicle towed to a place of safety for storage or safekeeping.
	Motor vehicle is not in compliance with Alaska DoT guidelines.

Considered Abandoned or Improperly Unattended	Motor vehicles involved in an incident resulting in a base driving license revocation notice that have not been moved to an approved storage location outlined in **paragraph sections 4.8.2 and 4.8.3** within 14 days.
	Law enforcement personnel reasonably believe the vehicle is abandoned.
	Failing to register a vehicle in current owner's name 30 days after purchase.
	Motorcycles and off-road vehicles being stored in a public parking, housing overflow parking, dorms, and barracks during JBER off season.
	Parked in a public parking location, housing overflow parking, dorms and barracks exceeding 14 days.
	Motor vehicles with expired registration parked in a public parking, housing overflow parking, dorms, and barracks.
	Left unattended or abandoned near a restricted or controlled off-limits area.
NOTE: Moving the vehicle to an alternative location in attempt to conceal the identified deficiency will not change, alter, or halt the impoundment procedures.	

5.3. Towing. All towing on JBER will be conducted by a towing vendor through contract.

5.4. Procedures for Impoundment:

5.4.1. Unattended POVs. Conspicuously place DD Form 2504, *Abandoned Vehicle Notice* (refer to DAFI 31-218), on POVs considered abandoned or improperly unattended. Document this action with an entry in the SF blotter and route a copy of the DD Form 2504 to 673 SFS/S2I.

5.4.1.1. Allow the owner 3 days from the date the POV is tagged to remove the vehicle. To avoid impoundment, the registered owner must provide proof to 673 SFS/S2I that the vehicle has been properly moved, stored or the deficiency identified via DD Form 2504 has been corrected. If the vehicle is not moved within the allotted time, the vehicle will be towed at the earliest opportunity.

5.4.1.2. SF will complete a DD Form 2505, *Abandoned Vehicle Removal Authorization,* 24 hours prior to the removal of the vehicle and conspicuously place it adjacent to the DD Form 2504.

5.4.1.3. After the vehicle is removed, SF completes the DD Form 2506, *Vehicle Impoundment Report* (See DAFI 31-218), as a record of action taken.

5.4.1.4. If the owner is located, they will remove all personal property from the vehicle prior to the vehicle being towed. If the owner is incapable or cannot be located, all personal property will remain with the vehicle. 673 SFS/S2I will conduct an inventory of personal property. Investigators will not open closed containers such as suitcases unless necessary to identify the owner or if the contents might present a danger to the public. Investigators will complete the DD Form 2506.

5.4.1.5. After the vehicle has been impounded, SF will contact the owner through the unit or forward a DD Form 2507, *Notice of Vehicle Impoundment*, to the address of the last known owner.

5.5. Search Incident to Impoundment Based on Criminal Activity:

5.5.1. If the owner or operator of a vehicle impounded for suspected criminal activity is not present, search authorization from the appropriate commander or magistrate will be obtained unless evidence or contraband is in plain view or readily discernible from the exterior of the vehicle.

5.5.2. If the owner or operator is present, such as during a criminal incident or if the operator is apprehended, and sufficient probable cause exists to seize the vehicle, you may search the vehicle without search authorization when there is a reasonable danger to police or public, there is a risk of loss or destruction of evidence, or the search is reasonable under rules governing search incident to apprehension.

5.5.3. Consult 673 ABW/SJA for assistance on searches incident to impoundment based on criminal activity.

5.5.4. Keep vehicles in SF custody when holding them for evidentiary purposes.

5.5.5. The DD Form 2506 will be completed prior to the vehicle being impounded.

5.5.6. Release recovered stolen POVs to the registered owner, unless held for evidentiary purposes, or to the law enforcement agency reporting the vehicle stolen, as appropriate.

5.6. Disposition of Motor Vehicles After Impoundment. Impounded motor vehicles will be held as long as necessary for evidentiary, law enforcement, or other legal purposes. When vehicles are no longer needed, they will be released to the owner per 673 ABW/SJA recommendations through 673 SFS/S2I. Impounded and abandoned vehicles will be released to a contract towing company after 60 days of making reasonably good faith efforts to contact the owner.

DAVID J. WILSON, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

National *Highway Safety Act of* 1966

10 USC UCMJ §815 Art. 15, *Commanding Officer's Non-Judicial Punishment*

10 USC UCMJ §892 Art. 92*, Failure to Obey Order or Regulation*

10 USC UCMJ §913 Art. 113, *Drunken or Reckless Operation of a Vehicle, Aircraft, or Vessel*

10 USC §9013, *Secretary of The Air Force*

SORN F031 AF SP L, *Traffic Accident & Violation Reports*, June 11, 1997

MRE Rule 312d, *Extraction of Body Fluids*

MRE Rule 315, *Probable Cause Searches*

Manual for Courts-Martial (MCM) *United States,* 2019 Edition

DoDI 6055.04, *DoD Motor Vehicle and Traffic Safety*, 27 August 2021

DAFI 31-101, *Integrated Defense (ID)*, 25 March 2020

DAFI 91-207, *The Traffic Safety Program*, 26 Jul 2019

AFPD 31-1, *Integrated Defense*, 21 June 2018

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 44-102, *Medical Care Management*, 17 March 2015

Joint Publication AR 190-5/DAFI 31-218, *Motor Vehicle Traffic Supervision*, 22 May 2006

JBElmendorf-RichardsonI 91-201, *Adverse Weather Notification Procedures,* 12 April 2023

2 AAC 90.310 *Demerit Point Schedule*

13 AAC, *Public Safety*

13 AAC, Chapter 4*, Motor Vehicle and Driving Offenses: Vehicle Equipment and Inspection*

13 AAC 04.275, *Towed Vehicles; Connections and Safety Devices*

13 AAC 63.050, *Breath Test Operator Certification*

ASTM F1447, *Standard Specification for Helmets Used in Recreational Bicycling or Roller Skating,*

Snell *Memorial Foundation B-95,* 1995

AS 28, *Motor Vehicles*

Anchorage, Alaska Code of Ordinances Title 9, Vehicles and Traffic

Aurora Military Housing Handbook

Prescribed Forms

None

Adopted Forms

United States *District Court Violation Notice*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Incident Report*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

DAF 847, *Recommendation for Change of Publication*

AF 75, *Visitor/Vehicle Pass*

AF 332, *Base civil Engineer Work Request*

AF 1315, *Accident Report*

AF 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF 3545A*, Incident Report*

AK DMV Form 446A, *Notice and Order of Revocation/Disqualification*

AK DMV Form 453A, *Under 21 Violations-Notice and Order of Revocation*

Abbreviations and Acronyms

AAC—Alaska Administrative Code

AF—Air Force (Forms)

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFPD—Air Force Policy Directive

ANG—Air National Guard

ANSI—American National Standard Institute

APD—Anchorage Police Department

AR—Army Regulation

AS—Alaska Statute

ATV—All Terrain Vehicles

BAC—Blood Alcohol Content

BrAC—Breath Alcohol Content

DAF—Department of the Air Force

DAFI—Department of the Air Force

DBIDS—Defense Biometric Identification System

DD—Department of Defense (Forms)

DMV—Department of Motor Vehicles

DoD—Department of Defense

DoT—Department of Transportation

DUI—Driving Under the Influence

DWI—Driving While Intoxicated

GOV—Government Owned Vehicle

IAW—In Accordance With

JBER—Joint Base Elmendorf-Richardson

LIDAR—Laser Radar

MAJCOM—Major Command

MCM—Manual for Courts Martial

MP—Military Police

mph—miles per hour

MRE—Military Rules of Evidence

NHTSA—National Highway Traffic Safety Administration

OPR—Office of Primary Responsibility

POC—Point of Contact.

POV—Privately Owned Vehicle

PTD—Personal Transportation Device

RV—Recreational Vehicle

SF—Security Forces

SFO—Security Forces Operations

SFST—Standardized Field Sobriety Test

UCMJ—Uniform Code of Military Justice

USC—United States Code

VIN—Vehicle Identification Number

Office Symbols

ABW—Air Base Wing

ABW/CC—Air Base Wing Commander

ABW/SJA—Air Base Wing Staff Judge Advocate

AMC—Air Mobility Command

BDOC—Base Defense Operations Center

CCF—First Sergeant

CES—Civil Engineer Squadron

CES/CEOMP—Civil Engineer Squadron Production Control

DFC—Defense Force Commander

FSS—Force Support Squadron

MSG/CC—Mission Support Group Commander

SFS—Security Forces Squadron

SFS/S2I—Security Forces Squadron Investigations Office

SFS/S3—Security Forces Squadron Training Section

SFS/S3OP—Security Forces Squadron Operations Support Office

SFS/S5PA—Security Forces Squadron Reports and Analysis Office

SJA—Staff Judge Advocate Office

Attachment 2

POINT ASSESSMENT FOR TRAFFIC VIOLATIONS TABLE

Table A2.1. Point Assessment for Traffic Violations.

JBER POINT ASSESSMENT FOR TRAFFIC VIOLATIONS	
Violation	**Points Assessed**
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)– property damage only.	6
Driving vehicle while impaired (BAC more than 0.05% and less than 0.08%).	6
Speed contests.	6
Speed too fast for conditions.	2
* Speed too slow for traffic conditions, and/or impeding the flow of traffic, causing potential safety hazard.	2
* Failure of operator or occupants to use available restraint system devices while moving (operator assessed points).	4
Failure to properly restrain children in a child restraint system while moving (when child is 4 years of age or younger or the weight of child does not exceed 20 pounds).	2
* One to 10 mph over posted speed limit.	3
* Over 10 but not more than 15 mph above posted speed limit.	4
Over 15 but not more than 20 mph above posted speed limit.	5
Over 20 mph above posted speed limit.	6
* Following too close.	4
Failure to yield right of way to emergency vehicle.	4
Failure to stop for school bus or school–crossing signals.	4
* Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic signor device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
* Improper passing.	4
* Failure to yield (no official sign involved).	4
* Improper turning movements (no official sign involved).	3

* Wearing of headphones/earphones or other listening devices (except for a single-ear hands-free cellular phone device) while operating a motor vehicle (two or more wheels).	3
* Failure to wear required PPE identified in Table 4.1. while operating or riding on a motorcycle, moped, or other two or more wheeled vehicle powered by a motorcycle–like engine.	3
* Improper overtaking.	3
* Operating an unsafe vehicle. (See Note 2)	2
* Driver involved in accident is deemed responsible (only added to points assessed for specific offenses).	1
* Driving with studded tires beyond AK State Law Studded Tire removal deadline	1

Notes:

1. Points will be assessed upon issuance of 1408s issued to military and civilian members on JBER. Both military and civilian members can appeal the traffic ticket to the magistrate through 673 SFS Reports and Analysis section, IAW para 2.7 of this regulation. Points assessment will be removed if magistrate concurs with appeal.

2. When two or more violations are committed on a single occasion, points may be assessed for each individual violation.

3. Points will be assessed if unsafe condition is not rectified and signed off by JBER Police Officer within 72 hours (Fixit Ticket).

***** Active-Duty Military Dependent and DoD Civilians (including NAF employees) assigned to JBER will be issued a DD Form 1408 for these infractions.

Attachment 3

SUSPENSION/REVOCATION GUIDELINES

Table A3.1. Suspension/Revocation Guidelines.

JBER SUSPENSION/REVOCATION GUIDELINES	
Violation	**Assessment**
Accumulating three parking tickets within a six-month period.	30 days suspension.
A child not wearing an approved child restraint system.	30 days suspension.
Negligent Driving.	Three months suspension.
Mental or physical impairment (not including alcohol or other drug use) to the degree rendered incompetent to drive.	Six months suspension.
Accumulate 12 traffic points within 12 months or 18 traffic points within 24 months.	Six months suspension.
Permitting an unlawful or fraudulent use of an official driver's license.	Six months suspension.
Unsafe or defective vehicle, identified by accident investigator, as causing a vehicle accident.	Six months suspension.
Reckless driving.	Six months suspension.
Engaged in an acceleration/speed contest.	Six months suspension.
DUI.	One year revocation.
Failure to submit to a base entry/exit point check.	One year revocation.
Refusal or failure to complete/submit to chemical test.	One year revocation.
Operating a motor vehicle while under the influence of any narcotic or any other drug to the degree rendered incapable of safe motor vehicle operation.	One year revocation.
Hit & Run - failure to leave contact information and report to SF after striking an unattended vehicle.	One year revocation.
Leaving the scene of an accident involving an occupied vehicle without exchanging information or rendering required assistance.	One year revocation.
Perjury or making a false statement under oath to an officer relating to the ownership or operation of a motor vehicle.	One year revocation.

Unauthorized use of a motor vehicle belonging to another, when the act does not amount to a felony.	One year revocation.
Use of a motor vehicle in the commission of a felony.	One year revocation.
Vehicular eluding/attempt to elude a police or SF officer when creating a substantial risk to bodily injury by the operation of a vehicle in a reckless manner.	One year revocation.
Exceeding posted speed limits in housing areas and active school zones by more than 5 mph.	First Offense: 30 days suspension. Any subsequent offense thereafter: six months suspension.
Driving while license or installation driving privileges are suspended/revoked.	Two years revocation (five years revocation for US Army members IAW AR 190-5.)
Commission of an offense in another state which, if committed on the installation, would establish grounds for suspension or revocation.	Reciprocal to length of revocation issued by state or required under this instruction
Failure to transfer, renew or maintain valid state registration/insurance.	First offense: Traffic Citation to be handled by the Unit First Sergeant (CCF) or CC. Second offense: 30 days suspension. Third or subsequent violation: one year revocation
Littering from a vehicle	First offense: Traffic Citation to be handled by CCF/CC. Second offense: 30 days suspension. Third or subsequent violation: one year revocation.
Parked in a designated handicapped parking slot without authorization.	First offense: Traffic Citation to be handled by CCF/CC. Second offense: 30 days suspension. Third or subsequent violation: one year revocation
Military member non-use of operator/passenger protective devices (seat belts, etc.).	First offense: Traffic Citation to be handled by CCF/CC. Second offense: 30 days suspension. Third or subsequent violation: one year revocation
Cell Phone use while operating a motor vehicle without a hands-free device.	First offense: Traffic Citation to be handled by CCF/CC. Second offense: 30 days suspension. Third or subsequent violation: one year revocation

NOTE: For offenses annotating subsequent punishments, the time period for offenses will be two years for each offense, from the date of the offense. Example: A member receives a ticket for Failure to Renew Vehicle Registration on 21 April 2012, if the same member receives a ticket for the same offense before 20 April 2014, this will count as the second offense. If the same member receives a ticket for the same offense on 21 April 2014, this will be the member's first offense.

Attachment 4

TRAFFIC ACCIDENT CLASSIFICATION GUIDELINES

A4.1. Classification Of Traffic Accidents. According to severity of injuries or property damage sustained. Major classifications include the following:

A4.1.1. **Severity Of Injury:**

A4.1.1.1. **Fatal Accident.** A motor vehicle accident that results in fatal injuries to one or more personnel. A fatal injury is one that results in death within 12 months of the accident causing the injury.

A4.1.1.2. **Incapacitating Injury.** An injury, other than fatal, that prevents the injured person from walking, driving, or normally continuing the activities that he or she was capable of performing before the accident. Examples are severe lacerations, broken or distorted limb, skull fracture, crushed chest, internal injury, unconsciousness when taken from the accident scene, or inability to leave the accident scene without help.

A4.1.1.3. **Non-Incapacitating Evident Injury.** An injury, other than fatal and incapacitating, that is evident to any person at the scene of the accident. Examples are lump on head, abrasions, or minor lacerations.

A4.1.1.4. **Possible Injury.** An injury reported or claimed that is not a fatal, incapacitating, or non-incapacitating evident injury. Examples are momentary unconsciousness, claim of injuries that are not evident, limping, or complaint of pain, nausea, or hysteria.

A4.1.2. **Severity Of Motor Vehicle Damage:**

A4.1.2.1. **Disabling Damage.** Any damage to a motor vehicle such that it cannot be driven (or towed in the case of trailers) from the scene of the accident in the usual manner by daylight after simple repairs, and without further damage or hazard to itself, other traffic elements, or the roadway.

A4.1.2.2. **Functional Damage.** Any non-disabling damage to a motor vehicle that affects operation of the motor vehicle or its parts. Examples are doors, windows, hood, and trunk lids that will not operate properly; broken glass that obscures vision; or any damage that could prevent the motor vehicle from passing an official motor vehicle inspection.

A4.1.2.3. **Other Motor Vehicle Damage.** Any damage to a motor vehicle that is neither disabling nor functional damage. Such damage usually affects only the load on, or the appearance of, the motor vehicle. Examples are damage to hubcaps, trim, or grill; glass cracks that do not interfere with vision; dents; scratches; body punctures; or damage to load.